

Court No. - 2

Case :- WRIT - C No. - 4260 of 2012

Petitioner :- Kanpur Electricity Supply Co.

Respondent :- U.P. Electricity Regulatory Commission & Others

Petitioner Counsel :- Mridul Tripathi

Respondent Counsel :- A.N. Singh

Hon'ble Arun Tandon,J.

The Electricity Ombudsman under the order impugned dated 04.01.2012 has specifically recorded that the requisite fee for change of the electricity supply meter was deposited by the consumer concerned on 04.03.2008. For a period of nearly three years i. e. up to 22.03.2011 the meter was not changed. For the inordinate delay, as per the Electricity Supply Code 7.1 fine at the rate of Rs. 50/- per day has been levied upon the Executive Engineer.

This Court finds absolutely no good ground to interfere with the findings of fact, with regard to deposit of money for change of the meter and the meter being replaced only after three years of such deposit. Consequential action taken by the Electricity Regulatory Commission, in terms of Electricity Supply Code, does not warrant any interference.

Writ petition is **dismissed**.

Order Date :- 24.1.2012

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